COMMISSION EN BANC RESOLUTION NO. 08-074-2021
Series of 2021

A RESOLUTION URGING FOR A CONCERTED EFFORT FOR THE FREEDOM OF BAE BIBYAON BIGKAY LIGKAYAN AND CONDEMNING HER EXPLOITATION BY THE COMMUNIST PARTY OF THE PHILIPPINES-NEW PEOPLE'S ARMY-NATIONAL DEMOCRATIC FRONT'S (CPP-NPA-NDF) FRONT ORGANIZATIONS

WHEREAS, Sections 1, Article 14 of the 1987 Philippine Constitution recognizes the Filipino family as the foundation of the nation. Accordingly, it shall strengthen its solidarity and actively promote its total development. Further, Section 4 of the same Article, provides that the family has the duty to care for its elderly members but the State may also do so through just programs of social security;

WHEREAS, Section 21 of the Republic Act 8371 otherwise known as the Indigenous Peoples' Rights Act of 1997 (IPRA) reiterates the constitutional provision guaranteeing the recognition of fundamental human rights and freedoms with emphasis on indigenous women;

WHEREAS, Section 26 of IPRA, provides that the State shall provide full access to education, maternal and child care, health and nutrition, and housing services to indigenous women. As far as possible, the State shall ensure that indigenous women have access to all services in their own languages.

WHEREAS, the Magna Carta for Women provides for the recognition of the rights of IP women, and the protection of senior citizens to actively contribute to productive and reproductive work, and continuously access support services;

WHEREAS, Bae Bibyaon Bigkay Ligkayan (Bae Bibyaon), more than 90 years of age, is a culture bearer and a highly respected "Bae" of the Matigsalug Indigenous Cultural Communities/ Indigenous Peoples (ICCs/IPs) in San Fernando, Bukidnon;

WHEREAS, Bae Bibyaon was deceived to leave her community by the CPP-NPA-NDF front organizations to Davao City without regard as to her age and health. She was brought to places such as in the United Church of Christ of the Philippines (UCCP) Southeast Mindanao Haran Center (HARAN) in Davao City, and University of the Philippines Diliman (UPD), where her movement is restricted and controlled, depriving her of freedom and liberty. She existed in deplorable conditions with inadequate nourishment. She contracted COVID-19, according to her grandniece Rurelyn Bay-ao as subsequently confirmed by UPD Vice Chancellor for Community Affairs Aleli Bawagan, putting in question the health and safety precautions she is being provided;

WHEREAS, Bae Bibyaon was transformed into a living propaganda through materials such as books, films, and documentaries about her. The published book on Bae Bibyaon and her life story, which contains false and misleading narratives, is being used as their propaganda material in International Solidarity Works (ISW) to generate funds and advance their armed struggle.

WHEREAS, there is indisputable evidence that Bae Bibyaon is being manipulated and has been misled including the wrong translations of her statements during interviews, upon the instructions of her handlers, and her persistent unfounded belief that there is mining in the ancestral domain where she belongs when no such activity is found in the area. This makes it suspect that the content of materials under her name, including the book purportedly on her life story, , were explained to her in a language understood by her;

WHEREAS, the family of Bae Bibyaon pleaded with government authorities to look into her situation, and requested that she be brought back to her community. They averred that while she is an adult, she is of very advanced age, isolated by strangers in an unfamiliar environment, not used to the ways of urban living, and unschooled in ideological machinations. All these practically put her at the utmost mercy of her handlers, and they worry about the realities that is being painted for her;

WHEREAS, affidavits of Bae Bibyaon's family, community resolutions, press interviews, and numerous video documentations on their concerns for Bae Bibyaon's welfare and travel home, dispute the claim of the SOS Network that the military forced them to make the request to the government. This also contradicts the misinformation that the activities for the release of Bae Bibyaon are military initiated, the truth being all efforts are civilian in nature led by the Inter-agency Humanitarian Team (IAHT) composed of representatives from the Commission on Human Rights (CHR), Department of Social Welfare and Development (DSWD), National Commission on Indigenous Peoples (NCIP) and the Philippine Commission on Women (PCW);

WHEREAS, the CPP-NPA-NDF's front organizations have been deceiving and misleading the public by bestowing her the title Tribal Chieftain of Ata Manobo ICCs/IPs when in fact she is a member of another ICCs/IPs, the Matigsalug, which clearly violates customary laws and committing cultural appropriation since such sacred title must be traditionally conferred by her own community;

WHEREAS, the IAHT visited the UPD on 06 October 2021, hoping to engage UP Administration relative to the letter sent on 28 September 2021 to the Chancellor requesting to help facilitate a meeting with UP SOS Network Chapter and Bae Bibyaon. They were accommodated by UPD Vice Chancellor Bawagan who informed the IAHT that the UPD administration is not aware of the whereabouts of Bae Bibyaon, however, maintains communication with the SOS Network;

WHEREAS, the NCIP held a press conference entitled "Bae Bibyaon (90+ years old) Walk to Freedom" on 07 October 2021 where statements from the family of Bae Bibyaon, and the Mayor and Indigenous Peoples Mandatory Representatives (IPMRs) of Talaingod Davao del Norte, emphasized the call for her to go back home to the care of her family and resume her role as one of the living culture bearers of her community;

WHEREAS, on 12 October 2021, the relatives of Bae Bibyaon, accompanied by the IAHT, implored UPD Vice Chancellor Bawagan to facilitate their reunion with her and her eventual return home. Despite access to SOS Network, the UPD Administration, after almost a month, has not given any update to the request of the relatives;

NOW, THEREFORE, BE IT RESOLVED, that the Commission demands the physical production of Bae Bibyaon, to allow her family to visit and communicate with her, to determine her physical and mental state, and eventually for her guardianship to be accorded to her family and community;

RESOLVED FURTHER, that the National Commission on Indigenous Peoples condemns the violations of the rights of Bae Bibyaon Bigkay Ligkayan and hereby recommends the following:

1. The conduct of a Senate and House of Representatives investigation in aide of legislation review and to study the UPD Charter if accommodating and sheltering SOS Network and other CPP-NPA-NDF front organizations, with all related utility, spacing, and other costs is part of its mandate and budget utilization accountability;
2. The Department of Social Welfare and Development (DSWD), National Commission of Senior Citizens (NCSC) , Department of Health (DOH), Commission on Human Rights (CHR), Department of Education (DepEd), Commission on Higher Education (CHED), Department of Justice (DOJ), National Intelligence Coordinating Agency (NICA), and other related branches of government to conduct separate or joint investigation on the exploitation by the CPP-NPA-NDF front organizations of Bae Bibyaon and other similarly situated IP youth, women, and elders;
3. The Department of Social Welfare and Development (DSWD), National Commission of Senior Citizens (NCSC) , Department of Health (DOH), Commission on Human Rights (CHR), Department of Education (DepEd), Commission on Higher Education (CHED), Armed Forces of the Philippines (AFP), Philippine National Police (PNP), Department of Interior and Local Government (DILG), Department of Justice (DOJ), National Intelligence Coordinating Agency (NICA), to undertake a joint legal offensive, law enforcement, and joint information operations through the National Task Force to End Local Communist Armed Conflict (NTF-ELCAC) Framework against the exploitation by the CPP-NPA-NDF front organizations of Bae Bibyaon and other similarly situated IP youth, women, and elders;
4. The filing of appropriate cases and actions for violations of the International Humanitarian Law and Anti-Terrorism Law and other appropriate laws not only in the Philippine legal framework, but also in other jurisdictions, including the international fora such as the United Nations (UN).

RESOLVED FURTHERMORE that the Regional and Provincial Offices and Community Service Centers shall:

1. Encourage the IPMRs to sponsor discussion and possible adoption of this Commission En Banc (CEB) Resolution by their respective Local Legislative Councils and Policy Making Bodies; and
2. Conduct information education campaign/consultation (IEC) activities on the abuses of the rights of the ICCs/IPs by the CPP–NPA–NDF and this CEB Resolution.

RESOLVED FINALLY, that the Office of the Executive Director (OED) shall ensure dissemination of this Resolution to all Offices. The Office of Empowerment and Human Rights (OEHR) is hereby directed to monitor the compliance to the above directives.

APPROVED this 20th day of October 2021 in Quezon City, Philippines.

GASPAR A. CAYAT
Commissioner, CAR and Region 1

NORBERTO M. NAVARRO
Commissioner, Region 2

ROLANDO M. RIVERA
Commissioner, Region 3
and Rest of Luzon

JEORGE M. LARGADO
Commissioner, Island Groups
and Rest of Visayas

PINKY GRACE P. PAREJA
Commissioner, Northern and
Western Mindanao

JENNIFER PIA-SIBUG-LAS
Commissioner, Central Mindanao

ALLEN A. CAPUYAN
Chairperson
Commissioner, Southern
and Eastern Mindanao

ATTESTATION

I attest that this Resolution was approved by the Commission during its Regular Session on the date as above stated.

ROGELIO FRANCISCO M. BANTAYAN, JR.
Executive Director and Head Secretariat